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KOSTIANTYN MARS, PRO SE

**UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION**

KOSTIANTYN MARS

Plaintiff,

vs.

STATE OF CALIFORNIA; GAVIN NEWSOM,
in his official capacity as Governor;

BETH MCGOWEN and JULIE EMEDE,
in their official capacities as Presiding Judges;

SANTA CLARA COUNTY SUPERIOR COURT;

HANNA MARS;

and all related officials,
judges, and agents acting under color of law,

Defendants.

) Case No. :

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CONSOLIDATED EVIDENCE

BINDER - EXHIBIT A

VOLUME 1 of 10

IN SUPPORT OF

NOTICE OF REMOVAL,

CIVIL RICO COMPLAINT,

EMERGENCY MOTION FOR TRO,

MOTION TO DISMISS CRIMINAL

CASE B2402220 WITH PREJUDICE

DATE:

TIME:

DEPT:

**CONSOLIDATED EVIDENCE BINDER - EXHIBIT A - VOLUME 1 of 10
(FULL TABLE OF CONTENTS + FEDERAL FILINGS)**

In Support of:

- **Notice of Removal** (28 U.S.C. §§ 1331, 1343, 1441, 1443, 1455)
- **Civil RICO Complaint** (18 U.S.C. §§ 1961–1968)
- **Emergency Motion for Temporary Restraining Order**
- **Motion to Dismiss Criminal Case B2402220 With Prejudice** (Fed. R. Civ. P. 65(b))

Related State Court Matters Removed:

- **B2402220** (Criminal Case, Santa Clara County Superior Court)
- **22DV000779** (Domestic Violence Case, Santa Clara County Superior Court)
- **22FL003144** (Family Law / Divorce / Custody Case)
- **24CV441024** (Name Change Case, Santa Clara County Superior Court)
- **200000002626999** (DCSS Wage Garnishment and Arrears Enforcement Case)

Respectfully submitted,

DATED: June 4, 2026


KOSTIANTYN MARS
Pro Se

SHORT HIGH-LEVEL TABLE OF CONTENTS

Set	Title	Primary Purpose for TRO Relief
Set 1	FEDERAL FILINGS AND JURISDICTIONAL BASIS	Establish federal jurisdiction and support immediate removal + TRO
Set 2	JUDICIAL DISQUALIFICATIONS AND VOID ORDERS	Nullify all orders issued by disqualified judges and restore pre-kidnapping custody status
Set 3	CRIMINAL CASE B2402220 - EVIDENCE IN SUPPORT OF IMMEDIATE DISMISSAL WITH PREJUDICE	Dismiss Criminal Case B2402220 with prejudice and expunge all warrants/records
Set 4	EVIDENCE OF PETITIONER'S ACTIVE PURSUIT OF CUSTODY RESTORATION AND SYSTEMIC DENIAL OF PARENTAL RIGHTS	Establishing clear reasons of racketeering attack and incarceration petitioner, demonstrate well documented good-faith efforts to release petitioner's son Max Mars from unlawful detention, prevent international abduction to war zone in Ukraine, and restore pre-kidnapping custody status
Set 5	FINANCIAL EXTORTION, ASSET SEIZURE, DCSS WAGE GARNISHMENT PROCEEDINGS, AND EVIDENCE SUPPORTING DISMISSAL OF GARNISHMENT AND FABRICATED ARREARS	Support immediate release of 401(k), dismissal of DCSS case, vacate arrears, and reimburse treble damages for theft via garnishment and seized assets
Set 6	PATTERN OF RACKETEERING ACTIVITY AND STATE-LEVEL COVER-UP	Show systemic racketeering pattern (including international coordination with Ukrainian cartel "Kodlo Gondona") and state-level cover-up
Set 7	VIDEO AND AUDIO EVIDENCE OF EXTORTION AND RACKETEERING ACTIVITIES UNDER COLOR OF LAW	Corroborate extortion, denial of access to court and hearings, fabrication of criminal charges, arrest, kidnapping of minor child and physical injuries to the child used as leverage for extortion.
Set 8	SERVICE, CHAIN OF CUSTODY, AND AUTHENTICATION	Provide authentication, service proof, and summary for full court acceptance

Declaration of Kostiantyn Mars (28 U.S.C. § 1746) – First page

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I, Kostiantyn Mars, declare under penalty of perjury under the laws of the United States that: I am the Movant and Plaintiff in this action. I have personally compiled the Consolidated Evidence Binder - Exhibit A. Every document, transcript, recording, and exhibit contained therein is a true and correct copy of the original or an accurate reproduction thereof prepared pursuant to Fed. R. Evid. 1006.

KOSTIANTYN MARS
Pro Se

EXHIBIT A-1

NOTICE OF REMOVAL AND EMERGENCY TRO MOTION

Description: Notice of Removal of five related Santa Clara County Superior Court cases to federal court under 28 U.S.C. §§ 1441, 1443, and 1455, and Emergency TRO Motion.

Date: April 8, 2026

ACCESS FULL DOCUMENT

Full PDF:

<https://marsjustice.io/federal-removal/notice-of-removal-and-emergency-tro-motion.pdf>

Scan QR Code for instant download of the complete document:



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UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION

KOSTIANTYN MARS	) Case No. :
Plaintiff,	)
vs.	) NOTICE OF REMOVAL
STATE OF CALIFORNIA;	) AND EMERGENCY
GAVIN NEWSOM, in his official capacity as Governor of the	) MOTION FOR
State of California;	) TEMPORARY
BETH MCGOWEN, in her official and individual capacities as	) RESTRAINING ORDER
Presiding Judge of the Santa Clara County Superior Court;	) (Filed pursuant to 28 U.S.C.
JULIE EMEDE, in her official and individual capacities as	) §§ 1331, 1343, 1367, 1441,
Presiding Judge of the Santa Clara County Superior Court;	) 1443, 1455, and 1651)
SANTA CLARA COUNTY SUPERIOR COURT;	) DATE:
HANNA MARS	) TIME:
(Petitioner in the above-referenced state matters);	) DEPT:
and all other judges, officials, agents, and co-conspirators acting	)
under color of law, including but not limited to Stephen Lowney,	)
Andrea Flint, James Towery, Thomas Kuhnle, Benjamin	)
Williams, Michael Clark, and Jessica Tenorio,	)
Defendants.	)

NOTICE OF REMOVAL
AND EMERGENCY MOTION FOR TEMPORARY RESTRAINING ORDER
(Filed pursuant to 28 U.S.C. §§ 1331, 1343, 1367, 1441, 1443, 1455, and 1651)

Related State Court Matters Removed:

- Criminal Case No. B2402220
- Domestic Violence Case No. 22DV000779
- Family Law / Divorce / Custody Case No. 22FL003144
- Name Change Case No. 24CV441024
- DCSS Wage Garnishment and Arrears Enforcement Case No. 200000002626999

-1-

NOTICE OF REMOVAL AND EMERGENCY MOTION FOR TEMPORARY RESTRAINING ORDER

EXHIBIT A-2

EMERGENCY MOTION FOR TEMPORARY RESTRAINING ORDER

Description: Emergency Motion for Temporary Restraining Order seeking immediate stay of all state court orders, warrants, and enforcement actions.

Date: April 8, 2026

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/federal-removal/emergency-tro-motion.pdf>

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KOSTIANTYN MARS, PRO SE

UNITED STATES DISTRICT COURT WESTERN DISTRICT OF TEXAS AUSTIN DIVISION

KOSTIANTYN MARS
Plaintiff,

vs.

STATE OF CALIFORNIA;

GAVIN NEWSOM, in his official capacity as Governor of the
State of California;

BETH MCGOWEN, in her official and individual capacities as
Presiding Judge of the Santa Clara County Superior Court;

JULIE EMEDE, in her official and individual capacities as
Presiding Judge of the Santa Clara County Superior Court;

SANTA CLARA COUNTY SUPERIOR COURT;

HANNA MARS
(Petitioner in the above-referenced state matters);

and all other judges, officials, agents, and co-conspirators acting
under color of law, including but not limited to Stephen Lowney,
Andrea Flint, James Towery, Thomas Kuhnle, Benjamin
Williams, Michael Clark, and Jessica Tenorio,

Defendants.

Case No. :

EMERGENCY MOTION
FOR TEMPORARY
RESTRAINING ORDER
(Fed. R. Civ. P. 65(b))

DATE:
TIME:
DEPT:

EMERGENCY MOTION FOR TEMPORARY RESTRAINING ORDER (Fed. R. Civ. P. 65(b))

Related State Court Matters Removed:

- Criminal Case No. B2402220
- Domestic Violence Case No. 22DV000779
- Family Law / Divorce / Custody Case No. 22FL003144
- Name Change Case No. 24CV441024
- DCSS Wage Garnishment and Arrears Enforcement Case No. 200000002626999

-1-

EMERGENCY MOTION FOR TEMPORARY RESTRAINING ORDER

EXHIBIT A-3

MOTION TO DISMISS CRIMINAL CASE B2402220 WITH PREJUDICE

Description: Motion to dismiss Criminal Case B2402220 with prejudice on the grounds that the underlying DVRO is void ab initio.

Date: April 8, 2026

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/federal-removal/motion-to-dismiss-criminal-case.pdf>

Scan QR Code for instant download of the complete document:



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KOSTIANTYN MARS, PRO SE

UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION

KOSTIANTYN MARS	)	Case No.: B2402220
Removing Defendant / Movant,	)	
vs.	)	MOTION TO DISMISS CRIMINAL CASE
	)	B2402220
THE PEOPLE OF THE STATE OF	)	(28 U.S.C. § 1441 et seq.; 42 U.S.C. § 1983;
CALIFORNIA,	)	Fed. R. Civ. P. 81)
	)	DATE:
	)	TIME:
Respondent.	)	DEPT:
	)	
	)	

MOTION TO DISMISS CRIMINAL CASE B2402220
(28 U.S.C. § 1441 et seq.; 42 U.S.C. § 1983; Fed. R. Civ. P. 81)

Movant Kostiantyn Mars respectfully moves this Court to dismiss Santa Clara County Superior Court Criminal Case No. B2402220 with prejudice and to expunge all related warrants and records.

CIVIL RICO COMPLAINT

Description: Civil Complaint documenting pattern of racketeering, extortion, child trafficking, and conspiracy under 18 U.S.C. §§ 1961–1968.

Date: April 8, 2026

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/federal-removal/civil-rico-complaint.pdf>

Scan QR Code for instant download of the complete document:



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KOSTIANTYN MARS, PRO SE

UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION

KOSTIANTYN MARS
Plaintiff,

vs.

STATE OF CALIFORNIA;

GAVIN NEWSOM, in his official capacity as Governor of the State of California;

BETH MCGOWEN, in her official and individual capacities as Presiding Judge of the Santa Clara County Superior Court;

JULIE EMEDE, in her official and individual capacities as Presiding Judge of the Santa Clara County Superior Court;

SANTA CLARA COUNTY SUPERIOR COURT;

HANNA MARS

(Petitioner in the above-referenced state matters);

and all other judges, officials, agents, and co-conspirators acting under color of law, including but not limited to Stephen Lowney, Andrea Flint, James Towery, Thomas Kuhnle, Benjamin Williams, Michael Clark, and Jessica Tenorio,

Defendants.

) Case No. :

)

1) CIVIL RICO COMPLAINT

) 42 U.S.C. § 1983).

) 42 U.S.C. § 1983)
)

DATE:

TIME:

) **DEPT:**
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CIVIL RICO COMPLAINT
(18 U.S.C. §§ 1961–1968; 42 U.S.C. § 1983)

-1-

CIVIL RICO COMPLAINT

EXHIBIT A-5
CIVIL COVER SHEET (JS-44)

Description: Official Civil Cover Sheet and Statement of Federal Authority.

Date: April 8, 2026

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/federal-removal/civil-cover-sheet-js-44.pdf>

Scan QR Code for instant download of the complete document:



1	CIVIL COVER SHEET (JS-44 SUMMARY)
2	
3	I. JURISDICTION
4	Federal Question (28 U.S.C. §§ 1331, 1343, 1443) - Civil Rights and Constitutional Violations
5	
6	II. NATURE OF SUIT (SELECT ALL THAT APPLY)
7	• 440 – Civil Rights: Other (Deprivation of rights under color of state law),
8	• 530 – Habeas Corpus (Detention/Unlawful Custody),
9	• 890 – Other Statutory Actions (Emergency federal review / all-writs jurisdiction)
10	
11	III. ORIGIN
12	• 5 – Removed from State Court (Santa Clara County, CA))
13	Related State Cases Removed:
14	• Case No. B2402220 - Criminal
15	• Case No. 22DV000779 - Domestic Violence (DVRO)
16	• Case No. 22FL003144 - Family Law / Divorce / Custody
17	• Case No. 24CV441024 - Name Change
18	• Case No. 200000002626999 - DCSS Wage Garnishment and Arrears Enforcement
19	
20	IV. CAUSE OF ACTION
21	Removal under 28 U.S.C. §§ 1441, 1443, 1455, 1651 (systemic due-process/equal-protection
22	denials; unlawful detention; parental rights deprivation by disqualified state actors under color
23	of law).
24	
25	V. REQUESTED RELIEF
26	Declaratory and injunctive relief; stay of void orders; immediate federal review and stay of
27	enforcement of void state orders; restoration of custody and constitutional rights.
28	
	Respectfully submitted,
	DATED: June 4, 2026
	 KOSTANTYN MARS Pro Se
	-1-
	CIVIL COVER SHEET (JS-44 SUMMARY)

EXHIBIT A-6

AUTHORITY SHEET - FEDERAL & STATE LAW

Description: Summary of federal and California legal authorities supporting removal and requested relief.

Date: April 8, 2026

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/federal-removal/authority-sheet.pdf>

Scan QR Code for instant download of the complete document:



1	AUTHORITY SHEET - FEDERAL & STATE LAW
2	This Exhibit summarizes the primary federal and state authorities relied upon in support of:
3	
4	• Notice of Federal Removal
5	• Emergency Motion for Temporary Restraining Order (TRO)
6	• Motion to Dismiss Criminal Case B2402220
7	• Civil RICO Complaint
8	• Consolidated Evidence Binder - Exhibit A, used under Fed. R. Evid. 1006
9	
10	I. FEDERAL JURISDICTION & REMOVAL AUTHORITY
11	
12	• 28 U.S.C. § 1331 – Federal Question Jurisdiction
13	Provides jurisdiction over actions arising under the Constitution, laws, or treaties of the United States.
14	• 28 U.S.C. § 1343(a)(3) – Civil Rights Jurisdiction
15	Grants jurisdiction over actions to redress deprivation of rights under color of state law.
16	• 28 U.S.C. § 1367 – Supplemental Jurisdiction
17	Extends jurisdiction over state-law claims that form part of the same case or controversy.
18	• 28 U.S.C. § 1441 – General Removal Statute
19	Authorizes removal of civil actions from state court where the federal court has original jurisdiction.
20	• 28 U.S.C. § 1443(1) – Civil Rights Removal
21	Authorizes removal where a person is denied or cannot enforce equal civil rights in state courts.
22	• 28 U.S.C. § 1455 – Removal of Criminal Prosecutions
23	Prescribes procedure for removal of state criminal cases to federal court.
24	• 28 U.S.C. § 1651(a) – All Writs Act
25	Authorizes issuance of writs necessary in aid of federal jurisdiction, including emergency stay orders.
26	• 42 U.S.C. § 1983 – Civil Rights Action
27	Provides a cause of action against persons acting under color of state law who deprive a plaintiff of federal rights.
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